

and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant upon where service of process was effected, via substitute service. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,064.35, plus costs, less any credits for payments received.

The Defendant made payments of \$4,000.

Costs are \$603.61. A memo on costs was filed 12/9/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,667.96.

Plaintiff shall prepare and submit a proposed order and judgment.

8. 9:00 AM CASE NUMBER: L24-08890

CASE NAME: BANK OF AMERICA, N.A. VS. JED MANAYON

***HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with process.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee

payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,987.96, plus costs, less any credits for payments received.

The Defendant made payments of \$2,002.

Costs are \$603.61. A memo on costs was filed 2/3/26.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,035.26.

Plaintiff shall prepare and submit a proposed order and judgment.

9. 9:00 AM CASE NUMBER: L24-10797

CASE NAME: WELLS FARGO BANK, N.A. VS. JOSEPHINE RAVAGO

***HEARING ON MOTION IN RE: PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS (MOTIONS)**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on counsel for Defendant. The Motion is unopposed.

On 10/21/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 6/13/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 6/13/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the cause of action, based on the allegation that